

COUR PERMANENTE DE JUSTICE INTERNATIONALE

SÉRIE A/B

ARRÊTS, ORDONNANCES ET AVIS CONSULTATIFS

FASCICULE N° 60

AFFAIRE CONCERNANT LA RÉFORME AGRAIRE
POLONAISE ET LA MINORITÉ ALLEMANDE

ORDONNANCE DU 2 DÉCEMBRE 1933

XXX^{me} SESSION

1933

XXXth SESSION

ORDER OF DECEMBER 2nd, 1933

PERMANENT COURT OF INTERNATIONAL JUSTICE

SERIES A./B.

JUDGMENTS, ORDERS AND ADVISORY OPINIONS

FASCICULE No. 60

CASE CONCERNING THE POLISH AGRARIAN
REFORM AND THE GERMAN MINORITY

LEYDE
SOCIÉTÉ D'ÉDITIONS
A. W. SIJTHOFF

LEYDEN
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PUBLISHING COMPANY

PERMANENT COURT OF INTERNATIONAL JUSTICE

ORDER MADE ON DECEMBER 2nd, 1933.

1933.
December 2nd.
General List:
No. 60.

THIRTIETH (EXTRAORDINARY) SESSION.

December 2nd, 1933.

CASE CONCERNING THE POLISH AGRARIAN
REFORM AND THE GERMAN MINORITY

Present: MM. ADATCI, *President*; GUERRERO, *Vice-President*; KELLOGG, BARON ROLIN-JAEQUEMYS, COUNT ROSTWORSKI, MM. FROMAGEOT, DE BUSTAMANTE, ANZILOTTI, SIR CECIL HURST, MM. SCHÜCKING, NEGULESCO, JHR. VAN EYSINGA, M. WANG, *Judges*.

The Permanent Court of International Justice,
composed as above,
after deliberation,

Makes the following Order:

Having regard to Article 48 of the Statute of the Court;
Having regard to Article 61 of the Rules of Court;

Having regard to the Application of July 1st, 1933, whereby the German Government brought before the Court a suit against the Polish Government "concerning the application of the" Polish "agrarian reform to the German minority in the voivodeships of Posnania and Pomerelia and kindred questions", which Application was filed in the Registry of the Court on July 3rd, 1933;

Having regard to the appointment by the German Government of M. Viktor Bruns, Professor of Law at the University of Berlin, Director of the Institute of Comparative Public Law and International Law, as its Agent; and to the appointment by the Polish Government of M. Thadeus Sobolewski,

Doctor of Law and Principal Counsellor at the State Litigation Office, as its Agent ;

Having regard to the Order of July 4th, 1933, whereby the President of the Court—the Court not being in session—fixed the time-limits for the filing of the Case by the German Government and of the Counter-Case by the Polish Government in the suit, the right to fix time-limits for the filing of the Reply and Rejoinder being reserved ;

Having regard to the Order of July 29th, 1933, whereby the Court dismissed the request for the indication of interim measures of protection submitted by the German Government together with its Application of July 1st, 1933, instituting proceedings ;

Having regard to the Orders of August 19th and September 25th, 1933, whereby the President of the Court—the Court not being in session—extended the time-limits fixed by the Order of July 4th, 1933 ;

Whereas the time-limit finally fixed for the filing of the Case expired on November 1st, 1933 ;

Whereas, on October 27th, 1933, the Registrar of the Court received from the German Minister at The Hague a note to the effect that the German Government does not intend to proceed with the suit concerning the Polish agrarian reform which it had brought before the Court ;

Whereas, pursuant to the provisions of the Rules, a copy of this communication was transmitted, for information and any necessary action, to the Agent for the Polish Government ;

Whereas, by a letter of November 15th, 1933, that Agent informed the Court that, in view of the attitude on the part of the German Government indicated by this note, the Polish Government has no objection to the discontinuance of proceedings in this case and, as it accordingly considers them closed, "requests the Court officially to record the fact" ;

Whereas the withdrawal of the suit by the German Government and the acquiescence of the Polish Government in this withdrawal terminate the proceedings instituted ;

THE COURT,

noting the communication received on October 27th, 1933, from the German Minister at The Hague, to the effect that the German Government withdraws the suit submitted by its Application of July 1st, 1933 ;

placing on record the declaration made on November 15th, 1933, by the Agent of the Polish Government to the effect that that Government acquiesces in this withdrawal ;

declares that the proceedings begun by the Application of the German Government are terminated ;

decides that the said case shall be removed from the Court's list.

Done in French and English, the French text being authoritative, at the Peace Palace, The Hague, this second day of December, one thousand nine hundred and thirty-three, in three copies, one of which shall be placed in the archives of the Court and the two others transmitted to the German Government and to the Polish Government respectively.

(Signed) M. ADATCI,

President of the Court.

(Signed) Å. HAMMARSKJÖLD,

Registrar of the Court.